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		the issue. The Complaint alleged a narrow conversation to help a family of five who were experiencing homelessness after an episode of domestic violence. (Id. at 43.) Here, the stated purpose of the “Star Chamber” inquiry was not to gather information to determine whether to report the child abuse to authorities or to discuss ways to prevent the abuse. Rather, Defendants contend their inquiry was a spiritual inquiry process and an internal decision-making process of Jehovah’s Witnesses, to discuss confidential information and to determine whether a sin was committed. (Motion at p. 15:1-5; 16:2-4.) Such discussion cannot be said to be in connection with a public issue or an issue of public interest, especially when such information is concealed and not used to further discussions about child abuse. Based on the foregoing, the Court finds Defendants have not made a threshold showing that Plaintiff’s causes of action arise from protected activity. As Moving Defendants failed at the outset, the court will not address Step Two of the SLAPP analysis. The motion is DENIED in its entirety. The case management conference is continued to November 23, 2026 at 9:00 a.m. in Department C28. Moving Defendants shall give notice of this ruling.
59.	The People of the State of California v. Experian Data Corp. 2019-01047183	Defendant Experian Data Corporation’s Motion for Summary Judgment is DENIED. As an initial matter, this motion is not proper. Parties are not at liberty to file multiple motions for summary judgment; leave of court is required. Defendant didn’t seek leave prior to filing the motion. Within the reply is defendant’s asserted position that it has been sandbagged (along with the court) because plaintiff stipulated to the filing of this motion. Whether there was a stipulation is not the question; the question is whether the court granted leave to file the motion. C.C.P. 437c(a)(5). The answer to that question is no. But because this motion is largely a repeat of the prior motion defendant filed (which J. Oberholzer denied), the court will turn to the merits, and likewise deny this motion. As J. Oberholzer stated: “Defendant has not produced evidence which establishes that Plaintiff was on inquiry notice of Experian’s failure to provide

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		notice to affected individuals, prior to the expiration of the statute of limitations. In contrast, evidence has been submitted which supports a finding inquiry notice occurred within 4-years of the filing of this action.” J. Oberholzer’s order goes on to describe the changing testimony provided by Defendant to Congress. And the Court of Appeals noted that “it can be inferred that on this date [March 18, 2014], the City Attorney was on inquiry notice that Experian did not know the affected individuals.” (<i>People v. Experian Data Corp.</i> (2024) 106 Cal. App. 5th 799, 805.) Further, as the Court of Appeals stated, as it relates to the changing position of Experian: “Thus, it would be particularly difficult to ascertain if or when Experian breached its disclosure duties.” (Id. at 810.) And based on a similar record presented in this motion and the matter considered by the Court of Appeals, “the record does not conclusively establish the discovery rule would not save the UCL claim.” (Id. at 813.) Turning to specific points raised by Experian, Defendant argues that Plaintiff bears a burden to demonstrate it acted with reasonable diligence to discover Defendant’s wrongdoing. This argument misstates the discovery rule. “Under the discovery rule, suspicion of one or more of the elements of a cause of action, coupled with knowledge of any remaining elements, will generally trigger the statute of limitations period ... The discovery rules only delays accrual until the plaintiff has, or should have, inquiry notice of the cause of action” (<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 807-808.) The issue of reasonable diligence is pertinent to establishing when the relevant actors should have inquiry notice of the defendant’s wrongdoing. Here, Plaintiff has made a sufficient showing that there was no reason to suspect that Defendant would fail to notify affected individuals of the security incident until Defendant publicized its lack of awareness of the identity of the affected individuals. Thus, it is not relevant to the inquiry here that Plaintiff did not become actually aware of the claims alleged here until December of 2017. Defendant’s evidentiary showing regarding investigations undertaken by other investigatory bodies regarding the security incident and Ngo’s identity theft scheme do not, as a matter of law, defeat Plaintiff’s own theory regarding inquiry notice. These competing theories and the evidence in support of each, must be assessed in a trial

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		setting, where the finder of fact can weigh evidence and assess credibility. Since there is a triable issue of fact regarding when Plaintiff was on inquiry notice of Defendant's alleged violation of Civ. Code §1798.82, summary judgment is not warranted. The court need not reach either party's evidentiary objections, as the evidence objected to is immaterial to the foregoing ruling. Plaintiff shall provide notice of this ruling.
60.	Atkins v. Hoag Memorial Hospital Presbyterian 2025-01468528	<u>Motion for Leave to Amend [defendants Dean Albert Le, M.D., and Saddleback Valley Neuroscience Medical Group dba Saddleback Neurology]</u> Plaintiff Sonia Atkins' motion for leave to allege punitive damages against defendants Dean Albert Le, M.D., and Saddleback Valley Neuroscience Medical Group dba Saddleback Neurology, is DENIED, as plaintiff has not provided sufficient admissible evidence to show a substantial probability that she will prevail on a claim for punitive damages pursuant to Civ. Code, § 3294. (Code Civ. Proc., § 425.13, subd. (a) ["In any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed," upon "a motion by the party seeking the amended pleading and on the basis of the supporting and opposing affidavits presented that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294 of the Civil Code"]; <i>College Hospital, Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 719-720 ["the gravamen of section 425.13(a) is that the plaintiff may not amend the complaint to include a punitive damages claim unless he both states and substantiates a legally sufficient claim ... substantiation of a proposed punitive damages claim occurs only where the factual recitals are made under penalty of perjury and set forth competent admissible evidence within the personal knowledge of the declarant"]; Civ. Code, § 3294, subd. (a) ["In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant"];